Dunn & Acosta LLP
Conroe, TX
Phone 713-555-4341

Settlement Demand

16 Nov 2024

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1155 - Demand for settlement

Dear Claims Representative:

Our office represents Randall Duncan in connection with the motor vehicle collision that occurred on 28 Jun 2023 at a signalized intersection. Our client was proceeding through the intersection on a green light when your insured's vehicle entered against the signal and struck the driver's side of our client's car. The force of the impact spun the vehicle and caused our client's left arm to strike the door frame and steering assembly.

As a direct result, our client sustained a fracture of the wrist that required emergency evaluation, immobilization, and a surgical procedure to set the bones. Our client has been unable to work during recovery, has attended repeated physical therapy sessions, and continues to experience restricted grip strength and pain in daily activities. Treating physicians have advised that further rehabilitation may be needed.

The police report documents the signal status and the position of both vehicles, and independent witness statements are consistent with our client's account. Liability is clear, and there is no reasonable basis to dispute that your insured caused this collision.

We therefore demand payment of $126,000.00 to resolve all bodily injury and property damage claims arising from this loss. This offer will remain open for thirty days from the date of this letter. If we do not receive a satisfactory response within that period, we will file suit without further notice.

Expert review: Melanie Munoz, orthopedic surgeon

Sincerely,

Daniel Stein
Dunn & Acosta LLP